ORDINANCE NO. 377

OF

THE CITY OF RECTOR, ARKANSAS

NOW, THEREFORE, BE IT ORDAINED FOR PASSAGE, the foregoing Ordinance on all terrain vehicles by the governmental body of the City of Rector, Arkansas:

SECTION I: It shall be unlawful for any person to operate an all terrain vehicle upon the public streets or alleys of the City of Rector, notwithstanding the fact that said vehicle may otherwise meet the equipment standards as set forth in Section III of Act 201 of 1959 (Ark. Stats. Ann. 75-1703). The only exception that an all terrain vehicle may be operated upon the public streets or alleys of the City is that if the vehicle is used in a farming operation by the owner and he is going to or from his field outside the City of Rector, then he may have access to the public streets or alleys to access him to such employment.

SECTION II: It is no defense to a prosecution under this Ordinance that the driver or operator possesses a valid drivers' license or motorcycle operators' license.

SECTION III: All terrain vehicles shall mean every three, four or six wheeled vehicle fifty inches or less in width, having a dry weight of 600 pounds or less, equipped with low pressure tires designed primarily for off-road recreational use and with a seat designed to be straddled by the operator, and having an engine deplacement of no more than four hundred (400) cubic centimeters. The term "low pressure tire" means a pneumatic tire six (6) inches or more in width designed for use on a wheel with a rim diameter of twelve (12) inches or less and utilizing an operating pressure of ten (10) pounds per square inch or less as recommended by the vehicle manufacturer. The term "all-terrain vehicle" shall not include any riding lawnmower or lawn or garden tractor.

SECTION IV: Any person violating the provisions of this Ordinance shall be guilty of a misdemeanor and upon conviction

thereof shall be punishable by a fine of not less than Ten Dollars ($10.00) nor more than Fifty Dollars ($50.00), or imprisoned for not more than thirty (30) days or shall be fined and imprisoned.

SECTION V: EMEGENCY CLAUSE. It is determined that the above described ordinance concerning all-terrain vehicles is needed immediately in order to properly care for the citizens of the City, and an emergency is therefore declared to exist; and this Ordinance shall be in full force and effect from and after its passage, approval, and publication as required by law.

DATED this 16th day of April 1987.

CITY OF RECTOR, ARKANSAS

BY: Reuben O Seay
Reuben Seay, Mayor

ATTEST:

Dorene Gordon
Dorene Gordon, City Clerk